



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 19 judgments on Tuesday 29 January 2019 and 25 judgments and / or decisions on Thursday 31 January 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 29 January 2019

[Nikitin and Others v. Estonia \(applications nos. 23226/16, 43059/16, 57738/16, 59152/16, 60178/16, 63211/16 and 75362/16\)](#)

The applicants, Vladimir Nikitin, Martin VILLEMS, Igor Karp, Peeter Jeret, Aleksei Savva, Guntars Kaziks, and Vitali Tarasovski, are Estonian nationals who were born in 1968, 1971, 1970, 1959, 1973, 1967, and 1978 respectively. They were all detained in Tallinn Prison in Estonia.

The case concerns their complaints about their conditions of detention.

The applicants were held at various times in Tallinn Prison between 2004 and 2013. They complained to the prison authorities about various aspects of the conditions of their detention, alleging overcrowding, and space which was often less than three square metres. The prison authorities either failed to respond to their complaints or rejected them and the applicants began civil proceedings for compensation, which took place at first-instance and on appeal. Some compensation was awarded to most of the applicants but on appeal those sums were quashed or reduced while complaints were ruled as being out of time or were dismissed for failure to use the correct procedure.

Relying on Article 3 (prohibition of inhuman or degrading treatment) of the European Convention on Human Rights, all seven applicants complain that the conditions of their detention in Tallinn Prison were inhuman and degrading. Mr Nikitin, Mr VILLEMS, Mr Tarasovski, Mr Kaziks and Mr Jeret also raise complaints about the level of compensation and the application of the statutory time-limits, which the Court will deal with under Article 13 (right to an effective remedy). Mr Savva complains under Article 8 (right to respect for privacy and home life) of a lack of contact with his family.

[Albert and Others v. Hungary \(no. 5294/14\)](#)

The applicants are 241 shareholders in three financial institutions, namely two savings banks, Kinizsi Bank Zrt. and Mohácsi Takarékszövetkezet Zrt, and one saving cooperative, Pátria. They are all Hungarian nationals.

The case concerns legislation which put their institutions under central supervising authorities.

The legislation, which entered into force in 2013, effectively integrated the applicants' banks into a scheme aimed at improving the credit institutions sector in Hungary.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention, the applicants complain about the impact of the legislation on their right to influence the conduct and policy of the banks in which they were shareholders. In particular, in their view, it excessively interfered with their rights to establish and amend a memorandum of association, adopt annual reports, appoint board members and determine share capital or payment of dividends. Under the

new legislation these issues became subject to the approval of the Integration Organisation and/or Savings Bank, two central bodies which were initially controlled by the State.

[Orlen Lietuva Ltd. v. Lithuania \(no. 45849/13\)](#)

The applicant company, Orlen Lietuva Ltd., is a legal entity registered under Lithuanian law.

The case concerns the application of limitation periods for imposing a fine in a case of a breach of competition law.

In 2010 the applicant company was fined over two million euros when it was investigated by the Competition Council and found to be in breach of Lithuanian competition law and European Union law for abusing its dominant position in the fuel market.

The applicant company lodged a complaint with the courts, arguing that the limitation period for imposing the fine under domestic law had been missed as it had already been investigated in 2005 and fined.

The Supreme Administrative Court dismissed the complaint in 2013. It found in particular that it had examined the Competition Council's right to reopen the investigation in the course of the 2010 proceedings and held that the provision of domestic law regarding the limitation periods for fines was only applicable in new investigations and not reopened investigations such as in the applicant company's case. The reopening of the investigation therefore had the power of *res judicata* and could not be questioned again.

The court also found that the principles for calculating the limitation period of fines, which it had recently established in another case concerning the sale of dairy products, could not be applied in the applicant company's case, which attracted the application of EU law.

Relying on Article 6 § 1 (right to a fair hearing), the applicant company alleges a breach of legal certainty in its case: firstly, because it was given a fine after expiry of the applicable limitation period; and, secondly, because there were different interpretations of the limitation period in its case and the dairy products case. The applicant company also alleges a breach of Article 7 § 1 (no punishment without law), given the high level of the fine.

[Mifsud v. Malta \(no. 62257/15\)](#)

The applicant, Francesco Saverio Mifsud, is a British national who was born in 1925 and at the time of the introduction of the application lived in Dublin.

The case concerns Mr Mifsud's complaint about being ordered by a court to undergo a DNA test in a contested paternity case. Mr Mifsud passed away in December 2017 and the application has been pursued by his widow.

In December 2012 a woman, X, began court proceedings to have Mr Mifsud declared as her biological father and for this to be put on her birth certificate. The applicant denied paternity and X asked the court to order him to take a DNA test, as provided for by the Civil Code in such cases. Mr Mifsud objected, arguing that forcing him to take the test would breach his rights under Article 8 of the Convention and asking for the question to be referred to the constitutional jurisdictions.

Both the Civil Court (First Hall) in its constitutional competence and the Constitutional Court dismissed Mr Mifsud's claim. The Constitutional Court referred in particular to X's right to know who her father was and found that Mr Mifsud would not suffer any humiliation in having to take the test, which was by way of a mouth swab. The test eventually showed that he was the father and the civil court ordered that X's birth certificate be changed accordingly.

The applicant complains that Maltese law made a genetic test mandatory in paternity proceedings, meaning the order to have the test was imposed on Mr Mifsud against his will, in breach of Article 8 (right to respect for private and family life).

Stirmanov v. Russia (no. 31816/08)

The applicant, Robert Anatolyevich Stirmanov, is a Russian national who was born in 1937 and lives in Arkhangelsk. He complains of a violation of his right to be presumed innocent.

In April 2005 L., a State company director, lodged a complaint against Mr Stirmanov, who at the time chaired the company's disputes board, accusing him of having exceeded the limits of his duties. L. claimed that in May 2003 Mr Stirmanov had taken a decision concerning salary arrears in breach of the applicable procedure. L. requested that the public prosecutor instigate criminal investigations against the applicant for "arbitrary unlawful acts".

On 4 August 2005 the prosecutor refused to initiate an investigation on the grounds that the criminal offence had become statute-barred. On 11 October 2005 the District Court set aside the prosecutor's decision on the grounds that criminal proceedings could be discontinued under the statute of limitations only with the agreement of the person under investigation. On 24 November 2005 the prosecutor heard Mr Stirmanov, who refused to testify on the merits of the charges against him but voiced his disagreement concerning the discontinuance of the proceedings as statute-barred. The prosecutor once again refused to initiate a criminal investigation, and Mr Stirmanov appealed against that decision. On 24 April 2006 the prosecutor gave a fresh decision refusing to initiate a criminal investigation. The applicant was not notified of that decision. By letter of 10 January 2008 the prosecutor informed the applicant that the relevant legislation did not require the prosecuting authorities to inform the person concerned by a preliminary check of any refusal (resulting from the said check) to initiate a criminal investigation. Mr Stirmanov applied to the courts to set aside the prosecutor's decision. That application having been dismissed, Mr Stirmanov appealed on the grounds, among other things, that he had been found guilty of an offence in the framework of non-judicial proceedings in which he had been unable to exercise his defence rights. The Arkhangelsk Regional Court dismissed his appeal.

Relying on Article 6 § 2 (presumption of innocence), the applicant complains of a violation of the principle of presumption of innocence having regard to the decision given by the prosecutor on 24 April 2006. He also complains about the reasoning of the decision in question, and argues that the courts adjudicating on his request to set aside that decision failed to remedy the alleged violation.

Cangı v. Turkey (no. 24973/15)

The applicant, Arif Ali Cangı, is a Turkish national who was born in 1964 and lives in İzmir (Turkey).

At the relevant time Mr Cangı was a member of the Allianoi initiative group, made up of private individuals and non-governmental organisations campaigning to prevent the destruction of the ancient site of Allianoi, which was engulfed by the Yortanlı dam at the beginning of 2011.

The case concerns the authorities' refusal to provide Mr Cangı with an official copy of the minutes of a meeting of the Cultural and Natural Heritage Board which took place on 26 January 2010, concerning the conservation plans for the ancient site of Allianoi and the planned construction of the Yortanlı dam.

Mr Cangı's request, which was based on section 26 (1) of Law No. 4982, was dismissed by the administrative courts, and his individual appeal lodged with the Constitutional Court was declared inadmissible in October 2014.

Relying on Article 10 (freedom of expression), Mr Cangı complains of an infringement of his right to receive and communicate information of public interest in his capacity as a citizen and member of a non-governmental organisation fighting to protect the ancient site of Allianoi and to promote public awareness of the issue.

Ebru Dinçer v. Turkey (no. 43347/09)

The applicant, Ebru Dinçer, is a Turkish national who was born in 1976. At the relevant time she was detained in Bayrampaşa Prison (Istanbul).

The case concerns an operation conducted by the security forces in Bayrampaşa Prison (Istanbul) in December 2000, during which Ms Dinçer suffered serious burns to various parts of her body, including her face, owing to a fire which broke out in the women's dormitory.

Relying in particular on Article 3 (prohibition of inhuman or degrading treatment), Ms Dinçer complains that she suffered serious injuries during the impugned operation owing to the excessive use of tear gas grenades. She further complains of the circumstances under which the scene of the operation was evacuated and the failure to provide the emergency medical care necessitated by her condition. She also alleges that she had no effective remedy to uphold her complaints because of the delays in, and ineffectiveness of, the investigations and proceedings conducted in her case, which, she claims, resulted in the criminal proceedings against those responsible for her injuries becoming statute-barred.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Kovács v. Hungary (nos. 21314/15, 21316/15, 21317/15 and 21321/15)

Vorienė v. Lithuania (no. 39423/15)

Oliveira Modesto and Others v. Portugal (no. 68445/10)

Simões Balbino v. Portugal (no. 26956/14)

Deaconu v. Romania (no. 66299/12)

Fadi Fawzi Taha v. Romania (no. 261/14)

Alimuradov v. Russia (no. 23019/15)

Mardonsheyev v. Russia (no. 8279/16)

Andreyeva v. Ukraine (no. 24385/10)

Chupryna v. Ukraine (no. 876/16)

Ivanov and Kashuba v. Ukraine (nos. 12258/09 and 54754/10)

Osipenkov v. Ukraine (no. 31283/17)

Thursday 31 January 2019

Fil LLC v. Armenia (no. 18526/13)

The applicant company, Fil LLC, is a private company based in Yerevan.

The case concerns the applicant company's complaint about delays in compensation proceedings it brought following a client's failure to pay for construction work.

The applicant's claim was granted in part in 2017 after nine years of proceedings. Over those nine years the domestic courts ordered five technical expert examinations of the construction work in order to resolve the case. However, the experts were not given access to the premises of the company where the construction work had been carried out and they therefore only finalised and submitted their opinion to the courts in 2015.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time) and Article 13 (right to an effective remedy), the applicant company complains that the length of the civil proceedings it

initiated was excessive and that there was no possibility under Armenian domestic law to either expedite the proceedings or obtain redress for the delays already incurred.

[Maslarova v. Bulgaria \(no. 26966/10\)](#)

The applicant, Emilia Radkova Maslarova, is a Bulgarian national who was born in 1949 and lives in Sofia.

The case concerns a complaint lodged by Ms Maslarova, who was Minister for Labour and Social Policy from 2005 to 2009, about an infringement of her right to be presumed innocent in criminal proceedings against her for embezzlement of public funds.

In August 2008 members of an association lodged a complaint with the public prosecutor's office concerning irregularities in the renovation work on a former medical centre. The following year, the public prosecutor's office initiated criminal investigations against persons unknown for misuse of power and embezzlement of public funds, and three months later the public prosecutor invited the National Assembly to lift Ms Maslarova's criminal immunity so that she could be placed under investigation. The next day Ms Maslarova herself agreed to the commencement of criminal proceedings against her. On the same day information was circulated in the press and a number of documentaries were made on the subject. In particular, the Procurator-General's Office held a press conference on the criminal proceedings. Its comments were taken up by several media outlets and a report was broadcast on national radio.

In February 2010 Ms Maslarova was placed under investigation for embezzlement of public funds. She was charged with having misappropriated a total of some 5,643,847.13 euros (EUR) for herself and two presumed accomplices. The next day the *24 Hours* newspaper published an article stating that the Prime Minister had declared that he was convinced that both charges against Ms Maslarova would stand because she was manifestly guilty. The following month the *Politika* newspaper published an interview with a member of the National Assembly who was the deputy chair of the *ad hoc* parliamentary committee of inquiry into the previous Government's expenditure. The article pointed out that that MP had said, among other things, that this was a typical example of corruption and failure to comply with the Law on public contracts committed by a senior member of the executive, that is to say the Minister in question. The criminal proceedings were still ongoing at March 2018.

Relying on Article 6 § 2 (presumption of innocence) and Article 13 (right to an effective remedy), Ms Maslarova alleges that the spokesperson of the Procurator-General's Office, the Prime Minister and the aforementioned MP had infringed her right to be presumed innocent and that she had had no effective remedy under domestic law to uphold her complaint.

[Williamson v. Germany \(no. 64496/17\)](#)

The applicant, Richard Williamson, is a British national who was born in 1940 and lives in Kent (the United Kingdom). He is a bishop and a former member of the Society of Saint Pius X.

The case concerns the applicant's complaint about his criminal conviction for incitement to hatred.

In November 2008 a journalist working for the Swedish television channel SVT-1 interviewed Mr Williamson at the seminary of the Society of Saint Pius X in Zaitzkofen, Germany. The applicant did not reside in Germany at that time. After talking about religious matters, the journalist changed the topic and a dialogue ensued in which Mr Williamson stated that he believed there were no gas chambers during the time of the Nazi regime.

In October 2009 the Regensburg District Court issued a penal order (*Strafbefehl*) against Mr Williamson, finding him guilty of incitement to hatred and sentencing him to a fine of 12,000 euros (EUR). Following various appeals, in February 2012 the Nuremberg Court of Appeal discontinued the proceedings, finding that the penal order did not meet the necessary requirements

as it had not contained a description of the relevant facts defining the offence. In October 2012 the Regensburg District Court, at the public prosecutor's request, issued another penal order against Mr Williamson for incitement to hatred, sentencing him to a fine of EUR 6500. On an appeal by the applicant, the District Court convicted him of incitement to hatred and sentenced him to a fine of EUR 1800. Mr Williamson's conviction was upheld on further appeal. The competent Regional Court considered that the applicant's statement denying the existence of gas chambers during the Nazi period and the killing of Jews in those gas chambers had constituted a denial of acts of genocide committed under the rule of National Socialism. In the Regional Court's view, Mr Williamson, when giving the interview, had understood and accepted that it might be viewed by a larger group of persons, including in Germany, via satellite television or the Internet. It had been clear to him that his statements could attract interest around the world, but particularly so in Germany on account of the country's history, the interview taking place in Germany and the fact that the Pope at that time, Pope Benedict XVI, was German.

An appeal by Mr Williamson on points of law was dismissed as was a request to be heard and an appeal lodged against that judgment. In March 2017 the Federal Constitutional Court declined to accept a constitutional complaint by the applicant for adjudication.

Relying on Article 10 (freedom of expression), Mr Williamson complains that his criminal conviction for incitement to hatred had breached his right to freedom of expression. In particular, he argues that German law was not applicable to his statements as the offence had not been committed in Germany but in Sweden where that statement was broadcast - and where it was not subject to criminal liability. Moreover, he had never intended that his statement should be broadcast in Germany and had tried everything in his power to prevent that.

[O'Neill v. the United Kingdom \(no. 14541/15\)](#)

The applicant, Charles Bernard O'Neill, is a British national who was born in 1962 and is currently serving a prison sentence at HMP Saughton, Edinburgh (United Kingdom), for murder and a series of sexual offences against children.

The case concerns Mr O'Neill's complaint that the part of his trial which related to the sexual offences against children did not respect the presumption of innocence.

He was indicted in 2008 on a number of serious charges, including murder and four sexual assaults against vulnerable boys.

At the trial, which took place in Scotland in 2010, he was acquitted of one of the charges of sexual assault. The acquittal was made on the sole basis that the court did not have jurisdiction to determine the matter as the victim's evidence at trial had only referred to acts which took place in England. Following the acquittal, the trial judge permitted the jury to use evidence in respect of this charge as corroboration for the other charges. The jury convicted Mr O'Neill of the three remaining charges. He was sentenced to three ten-year sentences to run concurrently with the life sentence for the murder charge.

Mr O'Neill appealed against his conviction, arguing that the trial judge had erred in directing the jury to use the evidence which formed the basis of the charge of which he had been acquitted in order to corroborate the other charges.

His appeal was dismissed in 2014. The Court of Appeal pointed out that, although there had been a procedural error at his trial (the trial court had not had the competence to acquit him), his acquittal on one of the charges still stood. It nevertheless found that the evidence of indecent assault and sodomy in England remained available to provide corroboration for the other charges in the indictment and that the trial judge's directions could not be faulted.

Relying on Article 6 § 2 (presumption of innocence), Mr O'Neill complains of a breach of the presumption of innocence in his case. First of all, despite his acquittal on one of the charges, the trial

judge permitted the jury to use evidence in respect of that charge as corroboration for other charges on the indictment; and, secondly the Appeal Court subsequently found that the decision to acquit him of that charge had been in error.

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Huseynov v. Azerbaijan (no. 44727/09)
Bauer v. Germany (no. 5318/17)
Bakos and Others v. Hungary (nos. 12436/18, 21426/18 and 21952/18)
Mazula v. Hungary (no. 34423/14)
Zizevičienė v. Lithuania (no. 61462/16)
Vidgen v. the Netherlands (no. 68328/17)
Fischer Rodrigues Cruz da Costa v. Portugal (no. 8133/14)
Buşu v. Romania (no. 65283/10)
D.D.F. and Others v. Romania (no. 61282/16)
Pătrăuceanu-Iftime v. Romania (no. 30777/14)
Petrov and Others v. Romania (no. 3682/12)
Romila v. Romania (no. 9126/13)
Scorțe v. Romania (no. 42714/13)
Somogyi and Greguss v. Romania (no. 42671/11)
Ștefănescu v. Romania (no. 54849/12)
S.S. Okumuşlar Konut Yapi Kooperatifi v. Turkey (no. 37911/12)
Yaman v. Turkey (no. 48292/11)
Shablya v. Ukraine (no. 28712/09)
TK Sklo, TOV v. Ukraine (no. 69758/10)
Yunak v. Ukraine (no. 1114/08)
Zhuravleva v. Ukraine (no. 45526/08)

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